

FAMILY LAWS OF PAKISTAN

A Comprehensive Legal Guide

Marriage • Divorce • Custody • Maintenance • Inheritance

ACTS COVERED IN THIS GUIDE

- Muslim Family Laws Ordinance, 1961 (VIII of 1961)
 - Family Courts Act, 1964 (XXXV of 1964)
- Dissolution of Muslim Marriages Act, 1939 (VIII of 1939)
 - Guardians and Wards Act, 1890 (VIII of 1890)
 - Child Marriage Restraint Act, 1929 (XIX of 1929)
- Dowry and Bridal Gifts (Restriction) Act, 1976 (XLIII of 1976)
 - Muslim Personal Law (Shariat) Application Act, 1962
- Maintenance Ordinance, 1982 | Christian Marriage Act, 1872

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

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Note: This guide is compiled from official sources including the Pakistan Code (pakistancode.gov.pk), Ministry of Law & Justice (molaw.gov.pk), Punjab Laws Portal (punjablaws.gov.pk), the Emory University Islamic Family Law Database, and peer-reviewed legal scholarship. It is for reference only — consult a qualified lawyer for legal advice.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

1. OVERVIEW OF FAMILY LAWS IN PAKISTAN

Sources: pakistancode.gov.pk | molaw.gov.pk | pklegal.org | Musawah (2022)

Pakistan's family law system is a blend of **Islamic jurisprudence (Fiqh)**, **British-era statutory legislation**, and **post-independence reforms**. It governs marriage, divorce, maintenance, child custody, inheritance, and guardianship for its population of over 220 million, the vast majority of whom are Muslim. Non-Muslim minorities — Christians, Hindus, Parsis — are governed by their own personal law statutes.

Following the **18th Constitutional Amendment (2010)**, many subjects including family law devolved to the provinces. As a result, some federal statutes (like the Muslim Family Laws Ordinance, 1961) have been adapted by provincial legislatures, particularly Punjab, creating minor provincial variations.

Primary Sources of Family Law in Pakistan:

Category	Primary Legislation	Year
Marriage (Muslim)	Muslim Family Laws Ordinance	1961
Marriage Courts	Family Courts Act	1964
Divorce (Women)	Dissolution of Muslim Marriages Act	1939
Child Custody	Guardians and Wards Act	1890
Child Marriage	Child Marriage Restraint Act	1929
Dowry Regulation	Dowry and Bridal Gifts (Restriction) Act	1976
Personal Law (Shariat)	Muslim Personal Law (Shariat) Application Act	1962
Christian Marriage	Christian Marriage Act	1872
Parsi Marriage	Parsi Marriage and Divorce Act	1936
Inheritance	Muslim Personal Law + Succession Act	1925

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

2. MUSLIM FAMILY LAWS ORDINANCE, 1961

Source: pakistancode.gov.pk | punjablaws.gov.pk | molaw.gov.pk

Official Title	Muslim Family Laws Ordinance, 1961
Act Number	VIII of 1961
Promulgated	2nd March 1961 (Gazette: 15 July 1961)
Applicability	All Muslims in Pakistan (post-18th Amendment: adapted province-wise; Punjab version: Muslim Family Laws (Amendment) Act 2015, XIII of 2015)
Source	pakistancode.gov.pk/english/UY2FqaJw1-apaUY2Fqa-cJyX-sg-jjjjjjjjjjjj
Status	In Force (Amended by provinces post-18th Amendment 2010)

Purpose & Significance

The Muslim Family Laws Ordinance (MFLO) of 1961 is considered the **cornerstone of family law in Pakistan** for Muslims. It was the product of the All Pakistan Women Association (APWA) and the Commission on Marriage and Family Laws (1955–1956). It introduced compulsory marriage registration, regulated polygamy, and established procedures for divorce and inheritance.

Key Provisions

Section	Subject	Key Provision
S.3	Arbitration Councils	Union Councils constituted as Arbitration Councils for matrimonial dispute resolution. Procedure of Civil Code applies.
S.4	Succession / Inheritance	Orphaned grandchildren inherit a share equal to what their pre-deceased parent would have received (per stirpes).
S.5	Registration of Marriages	Every Muslim marriage must be registered with the local Union Council via a Nikah Registrar. Failure is punishable.
S.6	Polygamy / Second Marriage	A man must obtain written permission from the Arbitration Council before contracting a second marriage.
S.7	Talaq (Divorce by Husband)	Talaq must be in writing and served on the Chairman of the Union Council. Copy served on the wife. Talaq is irrevocable.
S.8	Right of Wife to Divorce (Talaq-e-Tafweez)	If the husband has delegated the right of divorce (isma/tafweez) to the wife in the Nikahnama, she may petition for divorce.
S.9	Maintenance	If a husband fails to maintain his wife, she may file application to Arbitration Council which may make an order for maintenance.
S.10	Dower (Mahr)	If dower is not specified in the nikahnama, it is determined by Arbitration Council. Prompt dower (mu'ajjal) is preferred.

Penalties: Contracting polygamy without Arbitration Council permission: imprisonment up to 1 year and/or fine up to PKR 5,000.
Failure to register marriage: imprisonment up to 3 months and/or fine up to PKR 1,000.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

3. FAMILY COURTS ACT, 1964

Source: molaw.gov.pk | punjablaws.gov.pk/laws/177.html | pakistancode.gov.pk

Official Title	The West Pakistan Family Courts Act, 1964 (now Family Courts Act, 1964)
Act Number	XXXV of 1964
Promulgated	22 December 1964
Applicability	All of Pakistan (was never applied to East Pakistan before 1971). Provincial adaptations exist.
Source	molaw.gov.pk — THE WEST PAKISTAN FAMILY COURTS ACT 1964.pdf
Status	In Force

Purpose

The Act was enacted to provide a **specialized, expeditious judicial forum** for family disputes. Family Courts have **exclusive jurisdiction** over all matters in the Schedule, and their decisions (decrees) may only be appealed to the High Court — not the District Court.

Jurisdiction — Schedule Part I (Exclusive)

#	Matter
1	Dissolution of marriage including Khula
2	Dower
3	Maintenance
4	Restitution of conjugal rights
5	Custody of children and visitation rights of parents
6	Guardianship
6A	Return of child under the Hague Convention on International Child Abduction 1980 (added by SRO 980(I)/2017)
7	Jactitation of marriage (false claims of marriage)

Jurisdiction — Schedule Part II (Criminal, where spouse is victim)

Under S.5(2), Family Courts also try criminal offences where one spouse is the victim, including offences under: **Muslim Family Laws Ordinance, 1961** (S.6 — polygamy without permission; S.7 — failure to send talaq notice); and the **Child Marriage Restraint Act, 1929**.

Key Procedural Rules

Aspect	Rule
Reconciliation	Court must attempt reconciliation at every stage (S.10). Mandatory for dissolution suits.
Written Statement	Defendant must file within 7 days of first hearing (S.9). Time is strict.
Speedy Trial	Court must decide within 6 months of filing (S.12A, as amended).
Evidence	Court may receive evidence on affidavit. Strict Evidence Act rules relaxed.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

Injunctions	Family Court CANNOT issue injunctions against Arbitration Council proceedings (S.12).
Appeal	Lies only to the High Court (S.17). No intermediate court appeal allowed.
Execution	Decree for maintenance executable as arrears of land revenue if not paid.
S.21B	If Family Court decrees dissolution of Muslim marriage, it must send certified copy to Arbitration Cou

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

4. DISSOLUTION OF MUSLIM MARRIAGES ACT, 1939

Source: pakistancode.gov.pk | *Musawah Campaign for Justice in Muslim Family Laws (2022)*

Official Title	The Dissolution of Muslim Marriages Act, 1939
Act Number	VIII of 1939
Promulgated	17 March 1939
Purpose	To consolidate and clarify provisions of Muslim law relating to suits for dissolution of marriage by women married under Muslim law.
Source	pakistancode.gov.pk/english/UY2FqaJw1-apaUY2Fqa-cJaW-sg-jjjjjjjjjjjj
Status	In Force (Amended by MFLO 1961 to add polygamy as additional ground)

This Act gives Muslim women the statutory right to seek **judicial dissolution of marriage (Khula)** on specific grounds. Prior to this Act, women had very limited legal recourse. The Act is supplemented by the MFLO 1961 and the Family Courts Act 1964.

Grounds for Dissolution Under Section 2

#	Ground for Dissolution / Provision
1	Husband's whereabouts have been unknown for 4 or more years
2	Husband has neglected or failed to maintain the wife for 2 or more years
3	Husband has been imprisoned for 7 or more years
4	Husband has failed to perform marital obligations (without reasonable cause) for 3 years
5	Husband was impotent at the time of marriage and remains so
6	Husband has been insane for 2 years, or is suffering from leprosy or virulent venereal disease
7	Wife was married before age 16 by her guardian — she may repudiate after puberty, provided she does so before age 18 and the marriage has not been consummated
8	Husband treats wife with cruelty: habitual assault; inequality of treatment among wives (polygamy); interferes with property or legal rights
9	Husband contracted a second polygamous marriage in violation of MFLO 1961 Section 6
10	Any other ground recognised as valid for dissolution under Muslim law (residual ground)

Types of Divorce Recognized in Pakistan

Type	Who Initiates	Legal Basis	Key Features
Talaq	Husband	MFLO 1961, S.7	Written notice to Union Council Chairman + copy to wife. 90-day reconciliation period.
Talaq-i-Tafweez	Wife (if delegated)	MFLO 1961, S.8	Husband must have delegated right in Nikahnama. Follows same S.7 procedure.
Khula (Judicial)	Wife	DMMA 1939, Family Courts Act 1964	Wife applies to Family Court. Court may grant without husband's consent. Wife may request return of dowry.
Khula (No-fault)	Wife	Court precedents PLD 1959, PLD 1967	Some Family Courts allow no-fault divorce; wife generally must waive financial rights.
Mubarat (Mutual)	Both parties	MFLO 1961, S.8	Both sign Mutual Divorce Deed. Must still be sent to Union Council following S.7 procedure.
Judicial Dissolution	Wife via court	DMMA 1939, S.2	Court grants decree on S.2 grounds. No dower return required if husband at fault.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

Ila / Zihar	Varies	Islamic personal law	Conditional/abstinence-based forms. Less common; governed by personal law.
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Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

5. GUARDIANS AND WARDS ACT, 1890 — CHILD CUSTODY

Source: pakistancode.gov.pk | Emory University Islamic Family Law Database

Official Title	The Guardians and Wards Act, 1890
Act Number	VIII of 1890
Promulgated	21 March 1890
Applicability	All persons in Pakistan regardless of religion. Court guided by personal law of the minor.
Source	pakistancode.gov.pk/english/UY2FqaJw1-apaUY2Fqa-cJc=-sg-jjjjjjjjjjjj
Jurisdiction	Family Court deemed District Court for purposes of this Act (Family Courts Act, S.25)

Paramount Principle

The **welfare of the minor** (child's best interests) is the paramount and overriding consideration in all custody and guardianship decisions (S.17). No other consideration supersedes this principle.

Custody Rules Under Islamic Law (Hanafi School — Applied by Courts)

Situation	General Rule (Hanafi)
Custody of sons	Mother entitled until age 7 (hizanat). After 7, father has right.
Custody of daughters	Mother entitled until puberty. After puberty, father entitled.
Mother remarries	Mother generally loses custody rights upon remarriage to a non-mahram stranger. However, courts may retain custody if remarriage is to a non-mahram stranger.
Father's custody	After the stipulated ages, father (or paternal grandfather) is entitled to custody.
Non-Muslim parent	Courts guided by personal law of the minor, not of the foreign parent.
Visitation rights	Non-custodial parent entitled to regular access. Family Courts Act S.5 expressly includes 'visitation rights'.
International abduction	Governed by Hague Convention (SRO 980/2017) — Family Court has jurisdiction to order return.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

6. CHILD MARRIAGE RESTRAINT ACT, 1929

Source: pakistancode.gov.pk | pklegal.org | lawandlegislation.com

Official Title	The Child Marriage Restraint Act, 1929
Act Number	XIX of 1929
Promulgated	1 April 1929
Minimum Age	Male: 18 years Female: 16 years (Federal; Sindh raised this to 18 for both in 2013 via Sindh Child Marriages Restraint Act, 2013)
ICT Specific	Islamabad Capital Territory Child Marriage Restraint Act, 2025 (XI of 2025) — raised minimum age to 18 for both sexes in ICT
Status	In Force (amended by provinces)

Despite being nearly a century old, this Act remains critically important in combating early and forced marriage in Pakistan. However, a key limitation is that the Act **does not void child marriages** — it only penalises those who contract or facilitate them.

Offences and Penalties

Offender	Offence	Penalty
Male over 18 contracting child marriage	Contracting a child marriage	Simple imprisonment up to 1 month and/or fine up to PKR 10,000
Parent or guardian who permits/negligently allows	Permitting or allowing child marriage	Simple imprisonment up to 1 month and/or fine up to PKR 10,000
Person performing/conducting the ceremony	Officiating or conducting marriage ceremony	Simple imprisonment up to 1 month and/or fine up to PKR 10,000

Injunction: A court may issue an injunction restraining a child marriage before it takes place. If violated, the person is punishable with imprisonment up to 3 months.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

7. DOWRY AND BRIDAL GIFTS (RESTRICTION) ACT, 1976

Source: pakistancode.gov.pk | Musawah Repository (2022)

Official Title	The Dowry and Bridal Gifts (Restriction) Act, 1976
Act Number	XLIII of 1976
Promulgated	21 December 1976
Purpose	To restrict and regulate the giving and taking of dowry and bridal gifts at or before marriage, to prevent financial exploitation.
Source	pakistancode.gov.pk/english/UY2FqaJw1-apaUY2Fqa-bpuUY2Rp-sg-jjjjjjjjjjjj
Related Rules	Dowry and Bridal Gifts (Restriction) Rules, 1976 Baluchistan Dowry and Bridal Gifts (Restriction) Rules, 1981

Key Provisions

Section 3 — Value Limit: The total value of all dowry and bridal gifts given or agreed to be given at or before or after the marriage shall not exceed **PKR 5,000** (original 1976 figure — this has been criticised as severely outdated and unenforced in practice). Gifts in excess of this limit are deemed to be held in trust by the husband for the wife.

Section 4 — Presentation List: All dowry and bridal gifts must be listed on a prescribed form to be filed with the relevant authority. Gifts not listed may be treated as husband's/wife's trust property.

Section 5 — Offences & Penalties: Whoever demands, directly or indirectly, dowry from the bride's family or makes it a condition of marriage shall be punishable with simple imprisonment up to **6 months** and/or a fine. Any agreement to give dowry in excess of the prescribed limit is **void to the extent of the excess**.

***Practical Note:** Despite the law, dowry demands remain a significant social problem in Pakistan. Enforcement is weak and the PKR 5,000 cap has never been meaningfully updated. The Prohibition of Forced Marriage provisions in PPC S.498B and domestic violence laws provide additional (though incomplete) protection.*

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

8. MUSLIM PERSONAL LAW (SHARIAT) APPLICATION ACT, 1962

Source: pakistancode.gov.pk | Emory Islamic Family Law Database

Official Title	The West Pakistan Muslim Personal Law (Shariat) Application Act, 1962
Act Number	V of 1962 (West Pakistan)
Predecessor	Muslim Personal Law (Shariat) Application Act, 1937 (Act XXVI of 1937) — applied All-India; repealed by 1962 Act in West Pakistan
Applicability	All Muslims in Pakistan (subject to provincial adaptations)
Status	In Force

This Act directs the application of **Muslim Personal Law (Shariat)**, notwithstanding any custom or usage to the contrary, to all questions of: inheritance and succession; special property of females; betrothal; marriage; divorce; dower; adoption; guardianship; minority; legitimacy; family relations; and any wakf, trust or charitable endowment.

Significance: Before this Act, customary law often overrode Islamic law — for example, agricultural tribes denied daughters the right to inherit land. This Act mandates that all such questions be governed by Shariat for Muslim parties, protecting women's inheritance rights.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

9. MAINTENANCE — RIGHTS & LEGAL FRAMEWORK

Sources: MFLO 1961 S.9 | Maintenance Ordinance 1982 | Family Courts Act 1964

Related Legislation	Muslim Family Laws Ordinance 1961 (S.9) Maintenance Ordinance 1982 (XLV of 1982) Family Courts Act 1964
Enforcement	Family Court decree for maintenance is executed as arrears of land revenue (i.e., as a priority debt recoverable by government machinery)

Who is Entitled	From Whom	Legal Basis	Key Rules
Wife (during marriage)	Husband	MFLO 1961, S.9; Islamic law	Wife entitled to nafaqah (food, clothing, lodging). Cannot be reduced below subsistence level.
Wife (after divorce — Iddat period)	Ex-husband	Islamic law + Family Courts Act	Ex-husband must maintain wife during iddat (3 months/menstrual cycles or until delivery of child).
Children (minor)	Father	Family Courts Act, Schedule	Father obligated to maintain children; amount determined by Family Court based on needs.
Married daughter	Father	Islamic law	Father obligated if daughter's husband is unable to maintain her.
Indigent parents	Son (and daughter, per Islamic scholars)	Islamic law + judicial practice	Adult children may be ordered to maintain destitute parents.
Widow's maintenance	Husband's estate (if inherited)	Succession Act + Islamic law	No maintenance from estate under Islamic law; widow receives her share of inheritance.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

10. CHRISTIAN, PARSI & HINDU MARRIAGE LAWS

Sources: Pakistan Code | Court-Marriage.com | Pak-Lawyers.com

Christian Laws

Marriage Act	Christian Marriage Act, 1872 (XV of 1872). Marriage must be solemnized by a Minister of Religion or Marriage Registrar with banns or licence.
Divorce Act	Christian Divorce Act, 1869 (IV of 1869). Divorce only on grounds of adultery (original Act). Courts have interpreted more broadly. Petitions to District Court.
Age Requirements	Male: 21 years Female: 18 years (with parental consent for minors above these ages, procedures under Act apply).

Parsi Laws

Marriage & Divorce Act	Parsi Marriage and Divorce Act, 1936 (III of 1936). Applies to Parsis professing Zoroastrian religion.
Grounds for Divorce	Adultery, bigamy, non-cohabitation for 2+ years, unsound mind, venereal disease, leprosy, among others.
Jurisdiction	Parsi Chief Matrimonial Court (Karachi/Lahore). Delegates: Parsi marriage delegates designated for registration.

Hindu Laws

Hindu marriages in Pakistan were historically governed by customary law. The **Hindu Marriage Act, 2017** (enacted by Sindh first, then federal) now provides a statutory framework for Hindu marriages. Key provisions include: registration of Hindu marriages; minimum age of 18; prohibition of child marriage; no provision for divorce (consistent with Hindu religious tradition) but provision for annulment.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

11. INHERITANCE & SUCCESSION UNDER ISLAMIC LAW

Sources: Muslim Personal Law (Shariat) Application Act 1962 | Succession Act 1925 | MFLO 1961 S.4

Inheritance for Muslims in Pakistan is governed by **Islamic law of succession (Fara'id)** as applied through the Muslim Personal Law (Shariat) Application Act, 1962. Non-Muslims are governed by the Succession Act, 1925.

Quranic Heirs (Ashab al-Fara'id) — Fixed Shares

Heir	Relation	Share
Husband	Surviving spouse	1/4 (if children); 1/2 (if no children)
Wife / Wives	Surviving spouse(s)	1/8 combined (if children); 1/4 combined (if no children)
Daughter (single)	Female child	1/2 (if no son)
Daughters (2+)	Female children	2/3 combined (if no son)
Son + Daughter	Mixed children	Son: 2 shares, Daughter: 1 share (Asaba — residuary)
Father	Surviving parent	1/6 (if children); 1/3 (if no children and no mother)
Mother	Surviving parent	1/6 (if children); 1/3 (if no children)
Full Sister (single)	Sibling (if no ascendants/descendants)	1/2
Full Sisters (2+)	Siblings	2/3 combined

MFLO 1961 Section 4 — Grandchildren's Right

Under classical Islamic law, a grandchild whose parent has predeceased the grandparent does not inherit in the presence of uncles/aunts. **Section 4 of the MFLO 1961** reforms this: if a son or daughter of the propositus (deceased) dies before the succession opens, their children (grandchildren of the propositus) receive a **per stirpes share** equal to what their parent would have received.

Protection of Women's Inheritance (PPC S.498A): The Pakistan Penal Code Section 498A criminalizes depriving women of their inheritance rights by deceitful or illegal means. Punishment: imprisonment 5–10 years and/or fine of PKR 1 million.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

12. PROTECTION OF WOMEN AT WORKPLACE ACT, 2010

Source: *Pakistan Code* | *National Commission on the Status of Women*

Official Title	Protection Against Harassment of Women at the Workplace Act, 2010
Act Number	IV of 2010
Promulgated	February 2010
Applicability	All workplaces (government, private, informal sector)
Status	In Force

This Act defines sexual harassment and establishes mandatory inquiry committees in every workplace. Employers are required to display a Code of Conduct. Penalties range from minor reprimand to termination and registration on an offenders list. The Act was a significant legislative milestone for women's rights in Pakistan.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

13. KEY DEFINITIONS & LEGAL TERMINOLOGY

Term	Definition / Legal Meaning
Nikah	Islamic marriage contract — a civil contract requiring offer (ijab), acceptance (qabool), witnesses, and (typically) Mahr.
Mahr / Dower	Mandatory gift/sum payable by husband to wife at time of marriage. Becomes her absolute property. Two types: Prompt and Deferred.
Iddat	Mandatory waiting period for a woman after dissolution of marriage: 3 menstrual cycles (or 3 months if post-menopausal).
Khula	Redemptive divorce initiated by wife, usually by returning Mahr. Courts have allowed Khula without full Mahr return w
Talaq	Husband's unilateral right to pronounce divorce. Under MFLO 1961, must be in writing and served on Union Council.
Talaq-i-Tafweez	Delegated right of divorce granted by husband to wife, usually in Nikahnama. Allows wife to pronounce talaq upon h
Arbitration Council	Local Union/Town/Municipal Council or its Chairman, constituted under MFLO 1961 to mediate matrimonial disputes.
Hizanat	Custody of young children. Under Hanafi law, mother has hizanat for sons until age 7 and daughters until puberty.
Wali	Marriage guardian (typically father or nearest male relative). Classical Hanafi position: adult woman can contract mar
Nikahnama	The official written marriage contract/certificate. Contains terms including Mahr, conditions, any delegated divorce rig
Nafaqah	Maintenance: husband's legal obligation to provide wife and children with food, clothing, and shelter according to his
Mehr-e-Misil	Dower determined by reference to the dower received by female relatives of similar status, when dower was not spe

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

14. IMPORTANT CASE LAW & JUDICIAL PRECEDENTS

Sources: Pakistan Law Digest (PLD) | Court-Marriage.com | Emory Islamic Family Law Database

Balqis Fatima v. Najam-ul-Ikram Chaudhry *PLD 1959 (Lahore HC) 566*

Subject: Divorce / Khula **Holding:** Landmark ruling establishing that Pakistani courts allow no-fault divorce (Khula) for women without requiring proof of injury, provided wife is willing to return Mahr.

Khurshid Bibi v. Baboo Muhammad Amin *PLD 1967 SC 97*

Subject: Khula / No-fault divorce **Holding:** Supreme Court confirmed women's right to Khula on the basis of mutual irreconcilability, without specific grounds. Widely cited precedent for women's divorce rights.

Saima Waheed Case — Abdul Waheed v. Asma Jehangir *PLD 1997 Lahore 331*

Subject: Court marriage / Wali **Holding:** High-profile case on whether adult Muslim woman can contract marriage without wali's (guardian's) consent. Court recognized right of adult woman to contract marriage independently under Hanafi law.

Saleem Ahmad v. Government of Pakistan *PLD 2014 Federal Shariat Court 43*

Subject: Khula rights **Holding:** Federal Shariat Court ruling on limitations of husband's absolute right to divorce. Confirmed women's right to no-fault Khula without surrendering all financial rights where husband bears fault.

2022 Lahore High Court Ruling *2022 LHC (unreported)*

Subject: Divorce / Islamic law **Holding:** Court declared limitations on husband's absolute right to divorce void as against spirit of Islam. Practice of Talaq notification to Union Council remains mandatory under MFLO despite this ruling.

Sources: Pakistan Code, Punjab Laws, molaw.gov.pk, Musawah, Emory Islamic Family Law Database

15. QUICK REFERENCE SUMMARY TABLE

All major family laws of Pakistan at a glance

Act / Ordinance	Year	Act No.	Subject Matter	Key Right Protected
Muslim Family Laws Ordinance	1961	VIII/1961	Marriage registration, polygamy, talaq procedure	Women's rights in divorce & inheritance
Family Courts Act	1964	XXXV/1964	Specialized courts for family disputes — dissolution of marriage	Expedited justice for families
Dissolution of Muslim Marriages Act	1939	VIII/1939	10 grounds for women to seek judicial divorce	Woman's right to exit marriage
Guardians and Wards Act	1890	VIII/1890	Child custody, guardianship, welfare of minor	Child welfare + parental rights
Child Marriage Restraint Act	1929	XIX/1929	Minimum marriage age: 18M / 16F (18/18 in ICPR)	Protection of children from early marriage
Dowry & Bridal Gifts (Restriction) Act	1976	XLIII/1976	Cap on dowry; mandatory list of gifts; prohibition of dowry deaths	Protection of bride's family
Muslim Personal Law (Shariat) Application Act	1962	AcV/1962	Mandates application of Islamic law to all personal matters for Muslims	Muslims' personal law & custom
Maintenance Ordinance	1982	XLV/1982	Maintenance obligations and enforcement procedure	Financial support for wife and children
Christian Marriage Act	1872	XV/1872	Christian marriage registration, solemnization by Minister of Registrar	Legal recognition of Christian marriages
Christian Divorce Act	1869	IV/1869	Grounds for Christian divorce; petition to District Court	Christian women's divorce rights
Parsi Marriage & Divorce Act	1936	III/1936	Parsi marriage and divorce — Parsi Matrimonial Law	Parsi community rights
Protection Against Harassment at Workplace Act	2010	XLII/2010	Defines harassment; mandatory inquiry committee	Workplace safety
Anti-Rape (Investigation & Trial) Act	2021	XXX/2021	Special courts for rape cases; identity protection for victims	Rape victims' (Right S.376A)
PPC Section 498A	2011 (amendment)	XLV/1860	Criminal penalty for depriving women of inheritance	Women's inheritance rights
PPC Section 498B	2011 (amendment)	XLV/1860	Criminal penalty for forced marriage	Right to free consent in marriage
PPC Section 498C	2011 (amendment)	XLV/1860	Criminal penalty for marriage with Holy Quran	Women's right to marry a person

Official Sources Used: Pakistan Code (pakistancode.gov.pk) — Ministry of Law & Justice; Punjab Laws Portal (punjablaws.gov.pk); Ministry of Law & Justice (molaw.gov.pk); Emory University Schell Center Islamic Family Law Database; Musawah Campaign for Justice in Muslim Family Laws (2022 Repository); pklegal.org; lawandlegislation.com; Pak-Lawyers.com; Berkeley Law Library Catalogue.